



Republic of the Philippines
Province of La Union
MUNICIPALITY OF AGOO

OFFICE OF THE SANGGUNIANG BAYAN

April 15, 2026

RECEIVED
OFFICE OF THE SANGGUNIANG
PANLALAWIGAN

HON. ERIC O. SIBUMA
Vice Governor/ Presiding Officer
Sangguniang Panlalawigan- La Union
Capitol, San Fernando City, La Union

BY:
DATE: 4-16-26 TIME: 2:26

Sir:

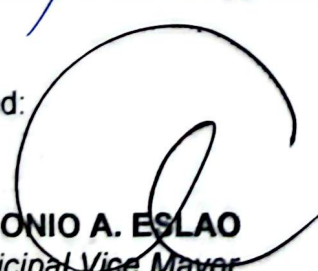
Transmitting herewith is Municipal Ordinance No. 12-2026, An Ordinance Regulating the Use of Modified "Open" Muffler/Exhaust Pipes and Similar Devices on all types of Motor Vehicles and Providing Penalties for Violation Thereof, and for other Purposed in the Municipality of Agoo, La Union.

Your favorable action hereon is highly appreciated. Thank you very much!

Respectfully yours,


FRANCISCO A. VERGARA
Secretary to the Sanggunian

Noted:


ANTONIO A. ESLAO
Municipal Vice Mayor



Republic of the Philippines
Province of La Union
MUNICIPALITY OF AGOO

OFFICE OF THE SANGGUNIANG BAYAN

CERTIFICATION

To Whom It May Concern:

This is to certify that a Public Hearing was conducted last March 5, 2026 at 2:30 in the afternoon at the ABC Hall, 2nd Floor Congressional E-Library Building , Agoo, La Union on the passage of Municipal Ordinance No. 12-2026 entitled "An Ordinance Regulating the Use of Modified "Open" Muffler/Exhaust Pipes and Similar Devices on all types of Motor Vehicles and Providing Penalties for Violation Thereof, and for other Purposed in the Municipality of Agoo, La Union."

Issued for purpose of legislative review by the Sangguniang Panlalawigan of La Union.

15th day of April 2026, Agoo, La Union.


FRANCISCO A. VERGARA
Secretary to the Sanggunian



OFFICE OF THE SANGGUNIANG BAYAN

MUNICIPAL ORDINANCE NO. 12 – 2026

AN ORDINANCE REGULATING THE USE OF MODIFIED "OPEN" MUFFLER/EXHAUST PIPES AND SIMILAR DEVICES ON ALL TYPES OF MOTOR VEHICLES AND PROVIDING PENALTIES FOR VIOLATION THEREOF, AND FOR OTHER PURPOSES IN THE MUNICIPALITY OF AGOO, LA UNION.

Authored by: SBM Anthony P. Quero

WHEREAS, Sections 15 and 16 of the 1987 Philippine Constitution declare that it is the policy of the State to protect and promote the right to health of the people and to protect and advance the right of the people to a balanced and healthful ecology in accord with the rhythm and harmony of nature;

WHEREAS, Section 16 of Republic Act No. 7160, otherwise known as the Local Government Code of 1991, expressly provides that every local government unit shall exercise the powers expressly granted, those necessarily implied there from, as well as powers necessary, appropriate or incidental for its efficient and effective governance, and those which are essential to the promotion of the general welfare, maintain peace and order and preserve the comfort and convenience of their inhabitants

WHEREAS, Section 34 (j) of Republic Act No. 4136 prohibits cutting or disconnecting mufflers, and Department Order No. 2010-32 (LTO) prohibits modifications that increase noise.

WHEREAS, motor vehicles offered for sale to the public are originally equipped with factory installed "built-in silencer" muffler or exhaust pipe primarily designed to minimize and eradicate environment pollutants such as noise, gas, and smoke;

WHEREAS, it has become common practice for owners and operators of motor vehicles to remove and detach the factory installed "built-in silencer" muffler or exhaust pipes and modify or replace them with "open" mufflers or exhaust pipes;

WHEREAS, these motor vehicles with modified "open" muffler or exhaust pipe emit loud, persistent and prolonged roaring noise which creates serious discomfort, annoyance, or disturbance at residential areas, particularly at night, contribute to accidents and injuries, and has already been the subject of numerous complaints and condemnation from concerned citizens;

WHEREAS, chronic exposure to loud, persistent, and prolonged roaring sound may be considered not only as a nuisance but also noise pollution for unreasonably endangering the health, peace, comfort, convenience and safety of people;

WHEREAS, the remedies for the abatement of nuisance is provided under Articles 699 and 705 of the Revised Civil Code of the Philippines. However, there is no existing statute that regulate and sanction noise pollution in the country.

WHEREAS, it is the policy of the Municipal Government of Agoo to protect the welfare of its constituents and to have an ecologically balanced living healthy environment;

FRANCISCO A. VERGARA
Secretary to the Sanggunian

ANTONIO L. ESLAO
Municipal Vice Mayor

FRANK O. SIBUMA
Municipal Mayor

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OFFICE OF THE SANGGUNIANG BAYAN

SBM REYNALDO V. OLLER

NOW, THEREFORE, BE IT ORDAINED by the Sangguniang Bayan of the Municipality of Agoo in Regular Session assembled that:

SECTION. 1. TITLE. - "AN ORDINANCE REGULATING THE USE OF MODIFIED "OPEN" MUFFLER/EXHAUST PIPES AND SIMILAR DEVICES ON ALL TYPES OF MOTOR VEHICLES AND PROVIDING PENALTIES FOR VIOLATION THEREOF AND FOR OTHER PURPOSES IN THE MUNICIPALITY OF AGOO, LA UNION."

SECTION. 2. DECLARATION OF POLICY. - It is the policy of the Local Government Unit of Agoo:

2.1. To promote, uphold, maintain peace and preserve peaceful and healthy environment within its territorial jurisdiction for the general welfare of its inhabitants, particularly the young and elderly; and

2.2. To display a kind of leadership that leads by example "Leadership by Example" thus promote that all Municipality of Agoo employees will uphold and adhere to this Noise Ordinance, a self-imposed regulation to refrain from the use of modified "open" muffler or exhaust pipes in their motor vehicle while going to work at the Municipal Hall of Agoo, their work place, home and to any other places.

SECTION. 3. SCOPE. - This Ordinance shall cover all motor vehicles, whether public or private, with modified "open" mufflers or exhaust pipes within the territorial jurisdiction of the Municipality of Agoo, La Union.

SECTION. 4. DEFINITION OF TERMS. - As used in this Ordinance, the following terms shall mean:

4.1 Muffler - a device consisting of a series of chambers or other mechanical design to have the "built-in silencer" for the purpose of receiving exhaust gas from an internal combustion engine and effectively reducing noise.

4.2 Motor Vehicle - is a self-propelled road and off-road vehicle commonly wheeled that does not operate on rails such as trains or trams and used for commercial and private purposes in the transportation of passengers and property.

4.3 Modified "Open" Muffler- is the aftermarket change or replacement of muffler, openly altered from its original form and removal of its factory-installed "built-in silencer".

4.5 Decibel Meter - is a measuring instrument used to assess noise or sound levels by measuring sound pressure.

4.6 LTO National Standard for Vehicle Exhaust Noise- As per Memorandum Circular No. 2020-2244, mandates a limit of **99 decibels (dB)**, measured at 2,000 to 2,500 rpm, with microphone positioned 0.5 m from exhaust outlet at a 45-degree angle

SECTION. 5. PROHIBITED ACTS. - It shall be unlawful for any person to use or operate a motor vehicle with modified "open" muffler or exhaust pipe that emits and produces noise levels beyond 99 decibels taken at an engine speed of 2,000 rpm to 2,500 rpm.

SBM STEVE ENRIQUE G. LOMBOY

SBM JEAN C. BOADO

(On Leave)

SBM ROGELIO R. GARABILES

SBM ERWIN B. CASTRO

SBM ROSEPHINE GIMNETA A. CORTES

SBM ROBERT A. FONTANILLA

SBM ANTHONY P. QUERO

SBM PRISCILLA B. KOMIYA

SBM MARK ANTHONY T. REYES

FRANCISCA VERGARA
Secretary to the Sanggunian

ANTONIO A. ESLAO
Municipal Vice Mayor

FRANK O. SIBUMA
Municipal Mayor

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It is sufficient to establish that a motor vehicle has a modified "open" muffler when its factory-installed muffler or exhaust pipe is no longer in its original form and its "built-in silencer" has been removed.

5.1 For Establishments Engaged in the Sale, Installation, Repair or Modification of Mufflers and Exhaust Systems

It shall be unlawful for any establishment to:

- Sell** modified or non-compliant "open" mufflers or exhaust pipes;
- Install or modify** mufflers in a manner that removes, alters, or disables the factory-installed silencer;
- Fail to securely weld** the silencer or noise-suppressing device upon sale or installation to ensure compliance with allowable noise limits;
- Operate without installing and maintaining a functional Closed-Circuit Television (CCTV) system** within the business premises for monitoring transactions related to the sale and installation of mufflers. CCTVs must have a backup of at least two (2) weeks and must be subject to review and inspection by the authorized enforcers.

SECTION. 6. IMPLEMENTATION AND ENFORCEMENT. - In line with their respective mandates, Agoo Public Safety and Order Office (APSOO) of the Municipality of Agoo, La Union and the Philippine National Police (PNP) shall serve as the lead agencies in the enforcement of this Ordinance. They shall perform the following responsibilities:

- Report, apprehend, and maintain the records of all violators of this Ordinance and ascertain the times an offender has violated the ordinance.
- Collect and safeguard all copies of Traffic citation Receipts being issued by duly authorized enforcement officers.
- Coordinate with the Land Transportation Office (LTO) for the proper implementation of this Ordinance.
- Receive and process complaints made by any person and accordingly perform their responsibilities in the implementation and enforcement of this Ordinance.

6.2 The Municipality of Agoo, La Union shall provide and equip the enforcers the appropriate decibel meter to determine if such modified "open" muffler or exhaust pipe produces noise levels beyond 99 decibels (dB) taken at an engine speed of 2,000rpm to 2,500rpm. with the microphone positioned 0.5m from exhaust outlet at 45-degree angle.

SECTION. 7. ROLE OF BARANGAY. -The Sangguniang Barangay and its officials shall serve as a complementary force in the effective implementation of this Ordinance within their respective territorial jurisdiction by reporting any offender to the APSOO and PNP.

SECTION. 8. AUTHORITY AND DUTIES OF ENFORCEMENT OFFICERS.

8.1 Any enforcement officers who will be tasked to enforce this Ordinance must be duly deputized by the Municipal Mayor.

8.2 The Traffic enforcers will not be allowed to confiscate the driver's license but must issue a citation ticket.

FRANCISCO A. VERGARA
Secretary to the Sanggunian

ANTONIO A. ESLAO
Municipal Vice Mayor

FRANK O. SIEMMA
Municipal Mayor

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OFFICE OF THE SANGGUNIANG BAYAN

8.3 All fees and penalties as provided for in this Ordinance shall be paid at the Municipal Treasurer's Office of Agoo and will accrue to the general fund of the Municipality.

SECTION 9. PENALTY. -Any person who violates this Ordinance shall be penalized as follows:

9.1 Any driver/rider who refuses to submit his/her vehicle for a noise level testing, or in any way resists the confiscation of mufflers is presumed to be a willful violation of this Ordinance and the appropriate penalties shall be imposed as follows:

First offense: Reprimand and confiscation of modified muffler or exhaust pipes.

Second offense: Penalty of Php 2,000.00 and confiscation of modified muffler or exhaust pipes.

Third and subsequent offense: Penalty of Php 2,500.00 and confiscation of modified muffler or exhaust pipes and a community service of three (3) hours.

Irrespective of the number of violations committed, the Philippine National Police is authorized to remove and confiscate modified or defective mufflers, and to ultimately destroy them. Provided, however, that the actual destruction shall be made publicly and using means which will not endanger the lives, safety, and property of the viewing public.

The list of confiscated and destroyed modified or defective mufflers, as certified by the Chief of the Agoo Police Station, shall be submitted to the Office of the Municipal Mayor and Sangguniang Bayan.

Police officers or their agents, who shall take for personal gain, mufflers under the possession of the Agoo Police Station, shall be meted a fine of Two Thousand Five Hundred Pesos (Php 2,500.00), notwithstanding any administrative and criminal charges which may be filed against them.

9.2 Penalties for Establishments found to be violating the Ordinance:

First offense - Php 2,000.00

Second offense - Php 2,500.00

Third offense - Php 2,500.00 fine and/or revocation of the Mayor's Permit by the Municipal Mayor.

SECTION 10. APPROPRIATIONS. -The funds for the implementation of this Ordinance shall be taken from any available funds in the Municipal Treasury subject to existing laws, rules and regulations of the Commission on Audit.

SECTION 11. SEPARABILITY CLAUSE. - If, for any reason, any part or provision of this Ordinance shall be declared unconstitutional or invalid, other parts or provisions hereof which are not affected thereby shall continue to be in full force and effect.

SECTION 12. REPEALING CLAUSE. - All previous Ordinance and rules/regulations which are inconsistent with the provisions of this Ordinance are hereby deemed, modified or repealed accordingly.

FRANCISCO A. VERGARA
Secretary to the Sanggunian

ANTONIO A. ESLAO
Municipal Vice Mayor

FRANK O. SIBUMA
Municipal Mayor

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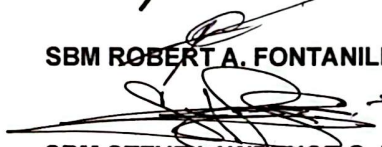
SECTION 13. EFFECTIVITY CLAUSE. This ordinance shall take effect upon compliance with the publication and posting requirements prescribed under section 511 of Local Government Code of 1991 (Republic Act No. 7160).

ENACTED: This 16th day of March 2026 at Agoo, La Union.


SBM MARK ANTHONY T. REFUGIA


SBM PRISCILLA B. KOMIYA

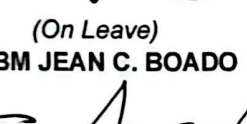

SBM ANTHONY P. QUERO


SBM ROBERT A. FONTANILLA

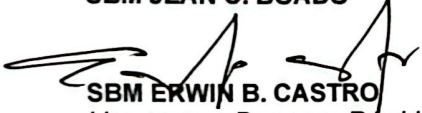

SBM REYNALDO V. OLLER


SBM STEVE LAWRENCE G. LOMBOY

(On Leave)


SBM JEAN C. BOADO


SBM ROGELIO R. GARABILES


SBM ERWIN B. CASTRO
Liga ng mga Barangay President


SBM ROSEPHINE GWYNETH A. CORTEZ
SK Federation President

I HEREBY CERTIFY THAT THIS IS TRUE AND ACCURATE COPY OF THE ORDINANCE
DULY ENACTED BY THE SANGGUNIAN ON MARCH 16, 2026.


FRANCISCO A. VERGARA
Secretary to the Sanggunian


ANTONIO A. ESLAO
*Municipal Vice Mayor
Presiding Officer*


FRANK O. SIBUMA
Municipal Mayor
Date Signed: **APR 15 2026**



6-1-12

Republic of the Philippines
PROVINCE OF LA UNION
OFFICE OF THE SANGGUNIANG PANLALAWIGAN



May 14, 2026

HON. ANTONIO A. ESLAO
Vice-Mayor
Agoo, La Union

Subject: **FORWARDING A COPY OF SP RESOLUTION NO. 1355 - 2026 FOR
INFORMATION, REFERENCE AND GUIDANCE**

Dear Vice-Mayor Eslao:

May we respectfully forward the herein attached Sangguniang Panlalawigan Resolution No. 1355-2026, for your honor's information, reference and guidance.

Dios ti agngina.

Very truly yours,

BY AUTHORITY OF THE SANGGUNIANG PANLALAWIGAN:


JANE T. FLORES, Ph.D.
Secretary to the Sanggunian

Enclosed as stated (4 pages)

Cc: **ATTY. ANDRE H. DACANAY**
Provincial Legal Officer

/mfa



LA UNION: Agkaysal

☎ (072) 682-2083; (072) 607-3234

✉ sangguniangpanlalawiganlaunion@gmail.com

🌐 www.launion.gov.ph

Republic of the Philippines
PROVINCE OF LA UNION
City of San Fernando

TANGGAPAN NG SANGGUNIANG PANLALAWIGAN

EXCERPT FROM THE JOURNAL OF THE 46th REGULAR SESSION OF THE 24th SANGGUNIANG PANLALAWIGAN OF LA UNION HELD AT THE SPEAKER PRO TEMPORE FRANCISCO I. ORTEGA, PROVINCIAL LEGISLATIVE BUILDING AND SESSION HALL, PROVINCIAL CAPITOL, CITY OF SAN FERNANDO, PROVINCE OF LA UNION ON MAY 12, 2026

PRESENT:

Hon. Eric O. Sibuma	Vice-Governor/Presiding Officer
Hon. Maria Rosario Eufrosina P. Nisce	Sangguniang Panlalawigan Member
Hon. Miguel Corleone B. Magsaysay	Sangguniang Panlalawigan Member
Hon. Gerard G. Ostrea	Sangguniang Panlalawigan Member
Hon. Aaron Kyle M. Pinzon	Sangguniang Panlalawigan Member
Hon. Ernesto V. Rafon	Sangguniang Panlalawigan Member
Hon. Alyssa Kristine B. Sibuma	Sangguniang Panlalawigan Member
Hon. Teresita "Tess" O. Garcia	Sangguniang Panlalawigan Member
Hon. Eulogio Clarence Martin P. De Guzman III	Sangguniang Panlalawigan Member
Hon. Ruperto A. Rillera, Jr.	Sangguniang Panlalawigan Member
Hon. Jeferson B. Fernando	Sangguniang Panlalawigan Member
Hon. Joyce M. Abuan	Provincial Indigenous Peoples Mandatory Representative
Hon. Danielle Bianca G. Ortega	President, PCL - La Union Chapter (Ex-Officio Member)
Hon. Ramon Guio A. Ortega, Jr.	President, LnB - La Union Chapter (Ex-Officio Member)
Hon. Harold Dave E. Sibuma	President, PPSK ng La Union (Ex-Officio Member)

ABSENT:

N O N E

RESOLUTION NO. 1355-2026

On motion of Hon. Joyce M. Abuan, unanimously seconded, be it;

RESOLVED, as it is hereby resolved, to declare as **VALID**, for purposes of review, Municipal Ordinance No. 12-2026 of Agoo, La Union, entitled: "An Ordinance Regulating the Use of Modified "Open" Muffler/Exhaust Pipes and Similar Devices on All Types of Motor Vehicles and Providing Penalties Thereof, and for Other Purposes in the Municipality of Agoo, La Union," as it is aligned with Section 16 or the General Welfare Clause of Republic Act No. 7160, otherwise known as the Local Government Code of 1991;

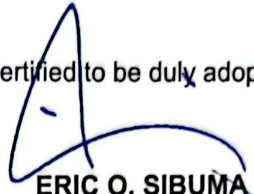
RESOLVED FURTHER, that the Sangguniang Bayan of Agoo, La Union is advised to take into consideration the observation of the Provincial Legal Officer relative to the enforceability of this Ordinance, and may state that modified mufflers are subject to confiscation upon violation; however, the actual enforcement of such confiscation falls under the authority of the executive department's enforcement powers;

RESOLVED FURTHERMORE, for the Sangguniang Bayan of Agoo to furnish the Sangguniang Panlalawigan of the appropriate amendatory ordinance, for information and further review;

RESOLVED FINALLY, that the opinion of the Provincial Legal Officer dated April 21, 2026 is hereby adopted and made an integral part of this resolution and be furnished to the Sangguniang Bayan of Agoo, La Union, for information, reference and guidance.

APPROVED.

Certified to be duly adopted:


ERIC O. SIBUMA
Presiding Officer
Vice-Governor

ATTESTED:


JANE T. FLORES, Ph.D.
Secretary to the Sangguniang Panlalawigan



Republic of the Philippines
PROVINCE OF LA UNION



OFFICE OF THE PROVINCIAL LEGAL OFFICER

PLO LO (ORD.) 150-2026

OFFICE OF THE PROVINCIAL LEGAL OFFICER
PANLABAN, LA UNION

April 21, 2026

TO: _____
DATE: 4/21/26 5:03

MS. JANE T. FLORES, PhD.
Secretary to the Sanggunian
Province of La Union

SUBJECT :REVIEW IN RE: MUNICIPAL ORDINANCE NO. 12, SERIES OF 2026 OF THE MUNICIPALITY OF AGOO, LA UNION, ENTITLED "AN ORDINANCE REGULATING THE USE OF MODIFIED OPEN MUFFLER/EXHAUST PIPES AND SIMILAR DEVICES ON ALL TYPES OF MOTOR VEHICLES IN THE MUNICIPALITY OF AGOO, LA UNION"

Dear Ms. Flores:

After careful review, the ordinance is found to be valid and within the scope of the municipality's legislative authority under the Local Government Code (LGC).

The ordinance squarely addresses a legitimate subject of local concern; the regulation of noise pollution and the preservation of public peace, order, and environmental health. Section 16 of the LGC, otherwise known as the general welfare clause, empowers local government units to enact measures that promote the health, safety, and convenience of their constituents. Noise generated by modified open mufflers and similar devices has long been recognized as a public nuisance, and its regulation falls well within the ambit of municipal police power. Thus, the ordinance is a proper exercise of the sanggunian's authority to safeguard community welfare.

On the matter of penalties, Section 447(a)(1)(vi) of the LGC authorizes the sanggunian to impose fines not exceeding Two Thousand Five Hundred Pesos (P2,500.00) or imprisonment not exceeding one year, or both, for violations of municipal ordinances. It must be clarified, however, that confiscation is not among the penalties enumerated under the LGC that the sanggunian may legislate. Confiscation pertains instead to the executive department's authority in the enforcement of laws and ordinances, particularly in the abatement of nuisances. The municipal mayor or duly authorized enforcement officers may lawfully confiscate property directly related to the violation—such as a modified muffler producing unnecessary or disagreeable noise—as part of the municipality's police power. Jurisprudence recognizes that the removal

LA UNION: Agkaysa!

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OFFICE OF THE PROVINCIAL LEGAL OFFICER

or seizure of contraband or nuisance items is valid, provided due process is observed and the measure is proportionate to the violation.

Accordingly, while the sanggunian may validly prescribe fines and imprisonment as penalties, the act of confiscation is executive in character. The ordinance may declare that modified mufflers are subject to confiscation when found in violation, but the actual implementation of such confiscation properly lies within the executive department's enforcement powers. This distinction ensures that the ordinance remains within the bounds of the LGC while still enabling effective abatement of noise pollution through executive action.

In view of the foregoing, Municipal Ordinance No. 12, Series of 2026 of Agoo, La Union, is a valid exercise of local legislative authority. It is consistent with the general welfare clause of the LGC, provided that the penalties imposed adhere to the statutory limits and that confiscation is implemented as an executive enforcement measure rather than a legislated penalty.

For your information and guidance.

Sincerely,


ATTY. ANDRE H. DACANAY
Provincial Legal Officer

LA UNION: Agkaysa!

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